

DEPARTMENT TWENTY-TWO
HONORABLE ALESIA JONES
707-207-7322

**TENTATIVE RULINGS
AND
PROBATE PREGRANTS**

CALENDAR DATE: September 9, 2026

ADVISEMENTS

Probate Notes: Probate notes are available in individual cases and are not posted on the public website. For more information on how to access case information through the court's public portal, please visit <https://portal.solano.courts.ca.gov>.

Civil Tentative Rulings and Probate Pregrants: Current procedures to advise the court of appearances and nonappearances in response to tentative rulings and pregrants remain unchanged. Probate pregrants and tentative rulings are not posted for conservatorships, guardianships, or any ex parte matters.

Appearances by Zoom: Remote appearances by Zoom are permitted except for MSCs, TMCs, trials or evidentiary hearings, or cases in which in-person appearances have been ordered. Persons appearing by Zoom are to be in appropriate attire. They are also to be in a quiet place where they can speak without interruption and clearly hear the proceedings.

Zoom Meeting ID: 160 941 6482

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• 833 568 8864 US Toll-free

**PREGRANTS AND TENTATIVE RULINGS
START ON THE NEXT PAGE**

9:30 a.m. CALENDAR

LINE

1

**IN THE MATTER OF THE ZACHARY WOOD SPECIAL NEEDS TRUST
FPR045592**

Verified Second Account of Trustee and Petition for its Approval and to Allow Compensation to Trustee and to Trustee's Attorneys

PREGRANT ORDER

This matter was continued from May 20, 2026 and July 19, 2026 to allow the petitioner to address issues with the petition. The court has reviewed the Response filed July 13, 2026 which was too late to be reviewed for the last hearing.

The court finds all notices have been given as required by law. The petition as supplemented is granted as prayed. The court orders that the surcharge order be sent to a collection agency to enforce the order against Carla Wood.

LINE

2

**IN THE MATTER OF THE P.O.A. OF WILLIE D. TURNER, SR.
FPR051895**

Willie D. Turner's Account and Report Thereof and Petition for Its Approval

PREGRANT ORDER

This matter was continued from July 20, 2026 to allow the petitioner to address issues with the petition. Nothing has been filed as yet.

The court on its own motion continues this hearing to October 26, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following issues:

1. On March 26, 2025, Attorney Sydney E. Fairbairn for Petitioner, Willie D. Turner, Jr., informed the court that records from Wells Fargo were received and used by a bookkeeper to prepare an accounting. However, no copies of bank statements or any other supporting documents were provided to support the transactions in the accounting. The petitioner shall provide copies of supporting documents for the court's review.

2. The petitioner must still provide an accounting that complies with the Probate Code, even though the petitioner states that the Power of Attorney was not used to marshal any assets. Any accounting filed with the court must comply with Probate Code §§1060-1064, et seq. and include a Summary of Account with the total assets at the beginning on hand and ending on hand. The accounting as presented is undecipherable.

LINE

3

IN RE THE ESTATE OF JEAN PATRICIA WELKER, DECEASED
PR23-00216

First and Final Accounting Report, Report of Administration, Petition for Administrative and Attorney Compensation, and for Final Distribution of the Estate

PREGRANT ORDER

This matter was continued from January 8, 2026, May 13, 2026, and July 2, 2026 to allow the petitioner to address issues with the petition. Nothing has been filed since March 23, 2026 to address the issues with the petition.

The court on its own motion continues this hearing one final time to November 12, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following issues:

1. Petition, item 13.b & Schedule 8: The personal representative's attorney seeks \$3,185 in extraordinary attorney fees. The statement provided does not comply with California Rules of Court, rule 7.702, as it does not state the "nature, necessity, success, costs in time, detail of the services performed, and the value of the services believed to warrant the additional fees."
2. Schedule 4: The fee base used does not include the losses on sale as required by Probate Code sections 10800(b) and 10810(b). Additionally, the fee base does not include the amount of the unclaimed property. The real property was appraised at \$455,000, but sold for \$409,000. Court Staff calculates the losses on sale as \$46,000 which makes the statutory compensation \$11,180. The petitioner shall explain why the amount should be different.
3. Schedule 5: The list of costs advanced by the personal representative includes a reimbursement of \$2,260.56 in travel costs. Travel and mileage costs are not reimbursable absent extraordinary circumstances. (Solano County Local Rule, rule 7.72(b)) The petitioner shall explain why the court should not order the petitioner to repay the estate for his reimbursement of his travel expenses without court authorization.
4. Exhibit 1: There is an assignment fee of \$20,000 paid to Dev Patel. This is in addition to payments made to this person on Schedule 6 which totaled \$982.72. The petitioner shall explain who Dev Patel is and why he was paid \$20,982.77 from escrow

and by counsel. The petitioner shall explain if Dev Patel was hired by the estate to perform duties that the petitioner was to perform or to perform expert services. The petitioner shall explain why the court should not consider a reduction in any compensation for the petitioner or surcharge him for any losses to the estate.

LINE

4

IN RE THE ESTATE OF ELMETT J. BATTISTE, DECEASED
PR24-00153

Petition for Final Distribution on Waiver of Account, Report of Administrator, Waiver of Administrator's Statutory Compensation, Verification

PREGRANT ORDER

This matter was continued from March 18, 2026, May 7, 2026, and July 2, 2026 to allow the petitioner to address issues with the petition. Counsel appeared at the last hearing, but no Substitution of Attorney was filed. Nothing has been filed since the last hearing to resolve the outstanding issues.

The court on its own motion continues this hearing to November 12, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following issues:

1. Petition, item 2: Pursuant to Probate Code section 12200(a), a personal representative is to file either a petition for final distribution or a status report within one year of the date letters are issued if no estate tax return is required, and within eighteen months of the date letters are issued if an estate tax return is required. Here, letters were issued on July 11, 2024. As the estate is of an insufficient size to require an estate tax return, the petition for final distribution or a status report was due by July 11, 2025. No status report was filed in 2025, and the initial petition for final distribution was dismissed. There is no explanation given for the delays and the failure to resolve the issues with the initial petition for final distribution.
 2. Petition, item 18: It is unclear how the petitioner is the sole beneficiary. The decedent was survived by a father who died two years after the decedent and would be the sole heir of the estate. The petitioner shall explain and provide a family tree to show how petitioner is related to the decedent and any other supporting documents for the court's review.
 3. The Inventory and Appraisal filed on August 27, 2024, is incomplete. Items 3-5 were not completed.
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LINE

5

**IN RE THE ESTATE OF HARRY JOSEPH RALSTON, SR., DECEASED
PR24-00638**

Petition to Set Aside and Amend the Order for Final Distribution (CCP §473(b))

PREGRANT ORDER

There was no discussion in the petition or the two amended petitions for final distribution of the monies to be reimbursed to the petitioner. No exhibit with the list of expenses paid by the petitioner was attached to the original or amended petitions. It is unclear whether the beneficiaries were aware of the expenses to be reimbursed. There is no list of the expenses to be reimbursed attached to this petition.

The court denies the petition.

LINE

6

**IN RE THE ESTATE OF KAY EUGENE DAVIS, DECEASED
PR25-00106**

First and Final Report and Account of Executor; Petition for Final Distribution; Payment of Statutory Attorney's Fees and Costs and Extraordinary Attorney's Fees; Payment of Statutory Executor's Commission; and Reimbursement of Costs

PREGRANT ORDER

The court on its own motion continues this hearing to November 5, 2026, at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issues:

There is no Proof of Service on file showing all those entitled to notice have received it per Probate Code section 11601.

LINE

7

**IN RE THE ESTATE OF EVELYN LOUISE MACIAS, DECEASED
PR25-00467**

Petition for Settlement on Waiver of Final Account and Final Report of Petitioner; For Order Approving Statutory Compensation to Attorneys for Ordinary Services and Reimbursement of Costs; Order Approving Statutory Fees and Commissions to Petitioner for Ordinary Services and Reimbursement of Costs; Order Authorizing Reserve; and Petition for Order Approving Final Distribution

PREGRANT ORDER

This matter was continued from July 20, 2026 to allow the petitioner to address issues with the petition. The court has reviewed the Supplement filed August 25, 2026 which resolved the outstanding issues.

The court finds all notices have been given as required by law. The petition is granted as corrected by the supplement, except that release of liability and discharge shall be ordered only upon the filing of the *Ex Parte Petition for Final Discharge and Order* once assets are distributed pursuant to Probate Code § 11753.

All future compliance hearings are vacated.

LINE

8

**IN RE THE ESTATE OF MICHAEL P. MCFADDEN, DECEASED
PR25-00534**

Petition for Letters of Administration and for Authorization to Administer Under the Independent Administration of Estates Act (Filed by Michael Hoover)

Objection to Petition for Probate filed by Michael Hoover (filed by John Fadden)

Thomas Fadden's Objection to Petition for Probate Filed by Michael Hoover

Michael Burstedt's Objection to Petition for Probate filed by Michael Hoover

Petition for Probate of Will and for Letters of Administration with Will Annexed and for Authorization to Administer Under the Independent Administration of Estates Act (filed by John Fadden)

Objection to John Fadden's Petition for Probate of Will and For Letters of Administration and Authorization to Administer Under the Independent Administration of Estate Act with Limited Authority (filed by Michael Hoover)

Petition for Letters of Administration and Authorization to Administer Under the Independent Administration of Estates Act (filed by Michael Burstedt)

Objection to Michael Burstedt's Petition for Letters of Administration to Administer Under the Independent Administration of Estates Act with Limited Authority (filed by Michael Hoover)

PREGRANT ORDER

This matter was continued from September 25, 2025, October 9, 2025, December 11, 2025, February 4, 2026, and May 6, 2026 to allow the parties to participate in mediation. At the last hearing, counsel advised the court that the parties did settle with the exception of Michael Burstedt. The parties decided more information was needed on the assets of the estate to finalize the settlement. Counsel for Michael Hoover stated that they expected that the settlement will leave only him and Michael Burstedt in the case. Both counsel will meet and confer and present the special administrator to the court or, in the possibility

counsel is not agreeable to one administrator, court will be provided with names of special administrators to choose from.

Counsel and parties may appear via Zoom, in person, or by CourtCall and address the following:

The status of the settlement and whether the parties were able to decide on the name of a special administrator.

LINE

9

**IN RE THE ESTATE OF JOEL MICHAEL DEWITT, DECEASED
PR25-00588**

Spousal Property Petition

Supplemental to Spousal Property Petition

Objection to Spousal Property Petition (filed by Patrick Cohen)

Petitioner's Opposition to Objections of Trustee Patrick Cohen to Spousal Property Petition

Status Review re Mediation

PREGRANT ORDER

Counsel and parties to appear and provide the court with an update regarding mediation. Remote appearances are approved.

LINE

10

**IN RE THE ESTATE OF TRIFON PATOLOT ASPRER, DECEASED
PR25-00642**

Order to Show Cause as to Albert Philip Asprer and Jeanne Serrano

PREGRANT ORDER

Albert Philip Asprer and Attorney Jeanne Serrano shall appear. Failure to appear at the hearing may result in the imposition of sanctions under CCP section 177.5 for violation of a court order.

LINE

11

**IN THE MATTER OF THE GEORGE S. & ALICE H. BENDER TRUST
PR25-00657**

Petition for Removal of Trustee; to Compel Accounting; for Breach of Trust; for Appointment of Trustee; for Attorney's Fees [Prob. Code §§ 15642; 16000 et seq.; 16060 et seq.; 16420; and 17200(b)(7)(C)]

Order to Show Cause for Failure to Comply to Ronald Bender

Response and Opposition to Order to Show Cause for Indirect Contempt for Violation of Court Order

PREGRANT ORDER

This matter was continued from August 10, 2026. The court ordered Ronald Bender to file an accounting no later than August 17, 2026 and, if he does not, he may be subject to \$1,000 per day for each day after August 17, 2026. The court notes that an accounting was filed August 17, 2026, but no Notice of Hearing was filed to put the accounting on calendar.

Counsel and parties may appear via Zoom, in person, or by CourtCall and address the following:

1. Whether Attorney Lewis has been paid for the previously ordered fees.
2. Whether the proposed accounting resolves the Application for Order to Show Cause for Indirect Contempt.

LINE

12

**IN RE THE ESTATE OF TOSHILO MARY ANN CONTINO, DECEASED
PR26-00071**

Petition for Probate of Lost Will and for Letters of Administration with Will Annexed and for Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

This matter was continued from March 20, 2026, May 7, 2026, July 2, 2026, and August 20, 2026 to allow the petitioner to address issues with the petition. The court has reviewed the 2nd amended Duties and Liabilities form filed September 8, 2026 which resolved the outstanding issues.

The court finds all notices have been given as required by law. The petition as supplemented is granted as prayed.

The will of Toshiko Maryann Contino aka Toshiko Contino dated January 3, 2011 is ordered admitted to probate as a lost will. The court finds the presumption in Probate Code section 6124 has been rebutted. The court further orders that a copy of the will attached to the petition shall be attached to the Order for Probate (DE-140) per Probate Code section 8223.

The court appoints Linda Maldonado as administrator with will annexed with full authority under the Independent Administration of Estates Act.

Bond is waived.

The court appoints Paul Miller as probate referee.

The personal representative shall file their Inventory and Appraisal within four months of the date letters are issued. **A compliance hearing regarding the filing of the Inventory and Appraisal is set for February 8, 2027 at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

The personal representative shall file either their petition for final distribution or their first status report within 12 months of the date letters are issued. **A compliance hearing regarding the filing and service of the petition or status report is set for November 8, 2027 at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

LINE

13

**IN THE MATTER OF THE GARY L. LOOS REVOCABLE TRUST
PR26-00117**

Petition for Order:

- 1) Removal of Respondent Julie Huynh as Trustee;
- 2) Appointing Petitioner Michael Loos as Successor Trustee;
- 3) Suspending Respondent Julie Huynh as Trustee;
- 4) Appointing Petitioner Michael Loos as Temporary Successor Trustee;
- 5) Invalidating the Gary L. Loos Revocable Trust Dated June 10, 2013 – Lack of Capacity;
- 6) Invalidating the Gary L. Loos Revocable Trust Dated June 10, 2013 – Undue Influence;
- 7) Invalidating Donative Transfers to Respondent Julie Huynh;
- 8) For Attorneys Fees and Costs – Probate Code §21380(d);
- 9) For Financial Elder Abuse;

- 10) Finding that Respondent Julie Huynh has Predeceased Decedent – Probate Code §259;
- 11) Compel Return of Estate Property – Probate Code §850;
- 12) For Attorneys Fees, Costs and Double Damages – Probate Code §859; and
- 13) For Bond

Respondent/Trustee's Objection to Petition For: (1) Removal of Respondent Julie Huynh as Trustee; (2) Appointing Petitioner Michael Loos Successor Trustee; (3) Suspending Respondent as Trustee; (4) Appointing Petitioner Micheal Loos as Temporary Successor Trustee; (5) Invalidating the Trust – Lack of Capacity; (6) Invalidating the Trust – Undue Influence; (7) Invalidating Donative Transfers to Julie Huynh; (8) For Attorney Fees and Costs – Probate Code Section 21380(d); (9) For Financial Elder Abuse; (10) Finding That Respondent Julie Huynh Has Predeceased Decedent – Probate Code Section 259; (11) Compel Return of Estate Property – Probate Code Section 850; (12) For Attorneys Fees, Costs, and Double Damages – Probate Code Section 859, and (13) For Bond.

PREGRANT ORDER

This matter was continued from April 27, 2026 and June 10, 2026 to allow the parties to complete discovery. Both counsel expressed an interest in court-sponsored mediation at the last hearing.

Counsel and parties may appear via Zoom, in person, or by CourtCall and address the following:

The status of discovery and the parties' willingness to participate in court-sponsored mediation.

LINE

14

IN RE THE ESTATE OF WELDON K. TUNNELL, DECEASED PR26-00456

Petition for Letters of Administration and for Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

The court on its own motion continues this hearing to November 12, 2026, at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issues:

Petition, item 8: The petitioner states that she is the decedent's niece, but the names and dates of death of the decedent's parents and siblings must be listed. (Solano County Local Rules, Rule 7.51(b).)

LINE

15

**IN THE MATTER OF THE CABALLERO FAMILY LIVING TRUST
PR26-00459**

Petition for Instructions Pursuant to Probate Code § 17200; Memorandum of Points and Authorities in Support Thereof

Verified Objection to Petition for Instructions Pursuant to Probate Code §17200;
Memorandum of Points and Authorities in Support Thereof

PREGRANT ORDER

The court notes there is a competing petition filed by the objector which is set for hearing on October 22, 2026. The court will continue this matter to that date to allow both petitions to be heard concurrently.

The court on its own motion continues this hearing to October 22, 2026 at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issue:

Counsel is reminded that in probate matters, the “title of each pleading and of each proposed order must clearly and completely identify the nature of the relief sought or granted.” (Cal. Rules of Court, rule 7.102.) Here, the caption merely refers to Probate Code section 17200 without any specifics as to what relief is requested.

LINE

16

**IN THE MATTER OF THE ROY W. HIGHLEY TRUST
DATED AUGUST 31, 2021
PR26-00473**

Petition for Order Confirming Trust Assets [Probate Code §850(a)(3)(A)&(B)]

PREGRANT ORDER

The court finds all notices have been given as required by law. Absent any objections, the petition is granted as prayed.
